

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 15.08.031, BUILDING PERMIT FEES–EXCEPTIONS FOR INCENTIVIZATION PROGRAM, OF CHAPTER 15.08, INTERNATIONAL BUILDING CODE ADOPTED, OF TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, TO CREATE INCENTIVES FOR ATTAINABLE HOUSING AND HISTORIC PRESERVATION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 15.08.031, Building permit fees–Exceptions for incentivization program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, is amended to read:

15.08.031 - Building permit fees–Exceptions for incentivization program.

- A. Programs that reduce the total amount of project fees paid have been found to successfully incentivize property development. The City of Cheyenne governing body desires to encourage and incentivize quality projects of the following varieties:
 - 1. Infill and the redevelopment and reuse of existing buildings and property within the downtown core;
 - 2. Residential development that contributes to attainable housing available to the workforce; and
 - 3. The rehabilitation of historic structures in ways which maintain historic integrity.
- B. The "City of Cheyenne Development Incentivization Program" is hereby established. To be eligible for the program, an applicant must satisfy the following conditions:
 - 1. Upon a form to be provided, complete and submit an application to the city planning and development department;
 - 2. A building permit application must be received by the city building office prior to June 30, 2030; and
 - 3. Meet the specific requirements of at least one (1) of the following incentivization categories:
 - a. Be located within the boundaries of the core development incentivization program project area identified in Exhibit A (map) attached to Ordinance No. 4241, on file

with the office of the city clerk and also available through the planning and development department;

- b. Provide housing that is income-restricted to eighty percent (80%) of area median income (AMI) as defined by the U.S. department of housing and urban development (HUD). The income restriction required under this subparagraph shall be for a period of not less than fifteen (15) years; or
 - c. Be a contributing historic structure in a historic district and submit a building permit application which only proposes changes consistent with maintaining historic integrity.
- C. The city shall reimburse the building permit fees as specified under Section 15.08.030 of this chapter, as provided under this subsection. Building permits issued the previous fiscal year shall not be eligible for reimbursements under this subsection if received more than seven (7) days after the close of the fiscal year. No reimbursement of a building permit fee shall be issued before the completion of the attendant project. Building permit fees shall be reimbursed as follows:
1. Up to five thousand dollars (\$5,000.00) per program project located within the boundaries of the core development incentivization program project area as provided by subparagraph (B)(3)(a) of this section;
 2. Up to five thousand dollars (\$5,000.00) per program project that creates affordable single-family housing in accordance with subparagraph (B)(3)(b) of this section;
 3. Up to ten thousand dollars (\$10,000.00) per program project that creates affordable multi-family housing in accordance with subparagraph (B)(3)(b) of this section; or
 4. Up to ~~one~~ five thousand dollars (~~\$1~~5,000.00) per program project that rehabilitates a historic structure in accordance with subparagraph (B)(3)(c) of this section.
- D. Planning and development department staff shall provide reports on prior fiscal year program activity to the governing body not less than annually. The reports shall contain:
1. The total number of projects utilizing the program;
 2. The total amount of fees waived; and
 3. The total valuation of projects incentivized by the program.
- E. The total amount of building permit fees reimbursed under this section shall be capped for each fiscal year in accordance with the limitations imposed under this section and as determined by the director of the planning and development department. Reimbursements shall be limited as follows:

1. Not more than \$200,000 for the entire program;
2. Not more than \$100,000 for downtown core projects;
3. Not more than \$150,000 for affordable housing projects; and
4. Not more than \$~~3520~~,000 for historic rehabilitation projects.

F. A decision from the director of the planning and development department, or their designee, on any matters of interpretation in this section shall be final.

G. This section is repealed effective July 1, 2030.

Section 2. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 3. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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